

**POKER FLAT PROPERTY OWNERS ASSOCIATION, INC.
v. ROLON**

22CV46309

**PLAINTIFF'S MOTION TO ENFORCE
SETTLEMENT AGREEMENT**

This case involves a breach of contract dispute. Now before the Court is a motion to enforce a settlement agreement filed by Plaintiff Poker Flat Property Owners Association, Inc ("Plaintiff") against Mike Rolon ("Defendant.")

Now before the Court is a motion to enforce settlement and for judgment against Defendant.

I. Background

Plaintiff filed the present action against Defendant on September 15, 2022, for the failure to adhere to the Declaration of Covenants, Conditions & Restrictions (CC&Rs) of the Poker Flat Property Owners Association. At the trial readiness conference on September 17, 2024, the parties reported that the matter was settled for zero dollars and that the Court took notice of the oral settlement. Despite the Court's clear order to enter into a written agreement memorializing the oral one, Defendant and his counsel refused to sign the written agreement. (See, Nov. 8, 2024, Ruling on Mtn to Tax Costs.)

On November 8, 2024, the Court found that Plaintiff was the "prevailing party" and ordered Defendant to pay Plaintiff \$24,660.85 in attorney's fees and costs. (*Ibid.*)

On February 5, 2025, the parties finalized the written Settlement Agreement ("Agreement") (Declaration of Brian Shrigley ("Shrigley Decl.") ¶ 2, Ex. A.) Pursuant to the Agreement, Defendant agreed to various remediation measures on the property and specifically agreed to "conduct excavation only with prior written Association approval." (Ex. A., Section 1(e).) Pursuant to Section 4 of the Agreement, the fines of \$27,925.00 would be forgiven so long as Defendant complied with "all provisions of this Agreement."

Plaintiff now moves to enforce the settlement agreement and for judgment against Defendant. The motion is opposed.

II. Legal Standard

Pursuant to Code Civ. Procedure section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

III. Discussion

Plaintiff moves on the grounds that Defendant has allegedly been conducting excavation without authority. Plaintiff also contends that Defendant has violated the Agreement because he has failed to obtain approval for his plans for restoration of the lot collapse from Calaveras County and Tri-Dam. (Shrigley Decl. ¶ 3.) Plaintiff provides photographs of Defendant's property containing "depictions of onsite storage of concrete blocks and drainage pipes used in conjunction with excavation and a plywood pathway for wheel barrows." (*Id.* ¶ 4.)

In opposition, Defendant asserts that pursuant to Section 2 of the Agreement, he paid the sum of \$24,660.85 in attorney's fees and costs to Plaintiff and has otherwise complied with the Agreement. (Opp. ¶ 1.) Defendant asserts that he has hired a person to help keep up with the required maintenance and that he is not performing any excavation without approval. Defendant also points out that Plaintiff is itself in breach of the Agreement. Specifically, Section 8 provides:

Dismissal with Prejudice. Within ten (10) days of the Association receiving payment of the attorney's fees and costs, the Association shall file with the court and serve on Rolon's counsel a request for dismissal with prejudice of its complaint.

However, Rolon asserts that despite his making payment as required, Plaintiff has never filed or served a request for dismissal with prejudice. Plaintiff does not contend that it was never paid; nonetheless, the Court records show no filed a request for dismissal. Defendant could thus arguably contend that he is relieved from his obligations under the Agreement. (*Coles v. Glaser* (2016) 2 Cal.App.5th 384, 392 [a party who has been injured by a breach of contract may treat the contract as rescinded].)

Plaintiff has not filed a Reply addressing any of Defendant's contentions. The evidence presented by Plaintiff does not conclusively establish that Defendant is engaging in excavation activities that Defendant denies, and the Court cannot determine if *Plaintiff* is in violation of the settlement agreement for its failure to file a dismissal.

Accordingly, the Court finds that this cannot be resolved as a short cause matter and an evidentiary hearing needs be scheduled.

The parties are ordered to attend the scheduled hearing on October 3, 2025, at 9:00 a.m. to schedule an evidentiary hearing on the claims of violations of the settlement agreement.

**FERNANDEZ, an individual v
THE RESOURCE CONNECTION, et al**

24CV47263

**PLAINTIFF'S MOTION FOR FINAL
APPROVAL OF CLASS ACTION SETTLEMENT**

Faviola Lizeth Fernandez ("Plaintiff") as the representative plaintiff, filed this class action lawsuit against The Resource Connection of Amador and Calaveras Counties, Inc. and The Resource Connection ("Defendants"). Plaintiff's First Amended Complaint ("FAC") alleges causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiff seeks penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General's Act ("PAGA").

On May 9, 2025, this Court granted preliminary approval of a settlement between the parties ("Settlement.") Plaintiff has now filed a Motion for Final Approval of Class Action Settlement. The motion is unopposed.

The Motion does not comply with Local Rule 3.3.7 but in the interests of judicial efficiency, the Court will consider the Motion. Plaintiff's counsel is cautioned to take note of this local rule for future filings.

I. Legal Standard

Generally, "questions about whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and